

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.				1. REQUISITION NUMBER		PAGE 1 OF 31	
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER FA520926Q0021	
6. SOLICITATION ISSUE DATE 08 May 2026		7. FOR SOLICITATION INFORMATION CALL:		a. NAME Go Ishikawa		b. TELEPHONE NUMBER (no collect calls) 3152254191	
8. OFFER DUE DATE/LOCAL TIME 08 Jun 2026 02:00 PM		9. ISSUED BY FA5209 374 CONS PK UNIT 5228, APO AP 96328-5228 APO, AP 96328-5228 UNITED STATES Go Ishikawa, Email: go.ishikawa.jp@us.af.mil Telephone: 3152254191 Takahiro Tsukada, Email: takahiro.tsukada.jp@us.af.mil Telephone: 042-552-3010		10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: ___ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 485510 SIZE STANDARD: USD 19.00	
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM-DPAS (15 CFR 700)		13b. RATING	
15. DELIVER TO See Schedule		16. ADMINISTERED BY		17a. CONTRACTOR/OFFERER TELEPHONE NUMBER		18a. PAYMENT WILL BE MADE BY	
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		19. ITEM NUMBER		20. SCHEDULE OF SUPPLIES/SERVICES	
21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
25. ACCOUNTING AND APPROPRIATION DATA See Section G - Contract Administration Data		26. TOTAL AWARD AMOUNT (For Government Use Only)		27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED		27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED	
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED		29. AWARD OF CONTRACT: REFERENCE OFFER DATED ___. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Schedule		30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	

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STANDARD FORM 1449 (REV. 11/2021)
Prescribed by GSA - FAR (48 CFR) 53.212

Solicitation/Contract Form

Japan-wide Chartered Bus Services 2.0

Japan-wide chartered bus services to transport personnel, including soldiers with weapons, as scheduled by the Government. The Contractor shall provide all resources and must be authorized under the PWS and applicable Government of Japan (GOJ) laws.

Product Service Code: V222

Supplies or Services & Prices or Costs

Additional Information/Notes

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with Revolutionary Federal Acquisition Regulation Overhaul (RFO) part 12. This announcement constitutes the only solicitation. Quotes are being requested and a separate written solicitation will not be issued. Solicitation number FA520926Q0021 is issued as a request for quotation (RFQ) for Japan-wide Chartered Bus Services. This acquisition is not set-aside for small business concerns.

Note 1: IDIQ Contract Minimum and Maximum Value. Referenced RFO clause, 52.216-22 (Indefinite Quantity), the following minimum and maximum are provided for the purpose of paragraph (b) of the clause:

(a) The minimum guaranteed amount for the life of the contract including options is USD2,500.00 (or yen equivalent amount). The Government will obligate the minimum guaranteed amount at the time of the basic contract award, by issuing a Task Order (TO) with value of which is equal to or greater than the minimum guarantee.

(b) The maximum value for the life of the contract including options is USD9,000,000.00 (or yen equivalent amount).

Note 2: Contract Period/Performance Period. The ordering period specified as "Period of Performance" under the Section "Deliveries or Performance" is automatically extended for a successive one-year period upon expiration of a then-current period, as listed below. The ordering period stipulated in the contract clause at RFO 52.216-18 is identical with the "Period of Performance" under Deliveries or Performance.

ESTIMATED CONTRAT LINE ITEM NUMBERS (CLINs) TOTAL AMOUNT

Estimated Total Amount For Ordering Period One (CLIN 0001): JPY _____
 Estimated Total Amount For Ordering Period Two (CLIN 1001): JPY _____
 Estimated Total Amount For Ordering Period Three (CLIN 2001): JPY _____
 Estimated Total Amount For Ordering Period Four (CLIN 3001): JPY _____
 Estimated Total Amount For Ordering Period Five (CLIN 4001): JPY _____
 ESTIMATED GRAND TOTAL AMOUNT (Ordering Period One through Five): JPY _____

Note 3: The Government contemplates award of a single Indefinite-Delivery Indefinite-Quantity (IDIQ) type contract resulting from this solicitation. In accordance with Addendum to RFO 52.212-2(d)(2), quoters are required to enter all prices for all items in Exhibits: Pricing Schedule.

Note 4: Solicitation provisions will be physically removed from any resultant award, but will be deemed to be incorporated by reference in that award.

Note 5: Submit quotes in whole numbers only, no fractions less than one (1). A price entry is required for all items within the attached Exhibits A, B, C, D, and E.

Note 6: Solicitation provisions will be physically removed from any resultant award but will be deemed to be incorporated by reference in that award.

Item	Supplies / Services	Estimated Quantity	Unit	Unit Price	Amount
0001	Ordering Period 1 (Year 1): Japan-wide Chartered Bus Services. Performance Period is 12 months from the effective date in Block 3 of SF1449. See Attachment 1 (Performance Work Statement (PWS)), and Attachment 2 (Exhibit A, Pricing Schedule) for details. Pricing Arrangement: Firm Fixed Price	1	Lot		
1001	Ordering Period 2 (Year 2): Japan-wide Chartered Bus Services. Performance Period is 12 months following the completion of Ordering Period One. See Attachment 1 (PWS), and Attachment 2 (Exhibit B, Pricing Schedule) for details.	1	Lot		

	Pricing Arrangement: Firm Fixed Price				
2001	Ordering Period 3 (Year 3): Japan-wide Chartered Bus Services. Performance Period is 12 months following the completion of Ordering Period Two. See Attachment 1 (PWS), and Attachment 2 (Exhibit C, Pricing Schedule) for details. Pricing Arrangement: Firm Fixed Price	1	Lot		
3001	Ordering Period 4 (Year 4): Japan-wide Chartered Bus Services. Performance Period is 12 months following the completion of Ordering Period Three. See Attachment 1 (PWS), and Attachment 2 (Exhibit D, Pricing Schedule) for details. Pricing Arrangement: Firm Fixed Price	1	Lot		
4001	Ordering Period 5 (Year 5): Japan-wide Chartered Bus Services. Performance Period is 12 months following the completion of Ordering Period Four. See Attachment 1 (PWS), and Attachment 2 (Exhibit E, Pricing Schedule) for details. Pricing Arrangement: Firm Fixed Price	1	Lot		

Description/Specifications/Statement of Work

Requirements

Japan-wide chartered bus services to transport personnel, including soldiers with weapons and bags, as scheduled by the Government. The Contractor shall provide all required equipment, materials, and labor, and must be duly authorized to perform services in accordance with the PWS and applicable GOJ laws.

0001

Product Service Code: V222

1001

Product Service Code: V222

2001

Product Service Code: V222

3001

Product Service Code: V222

4001

Product Service Code: V222

Packaging and Marking

Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Other Instructions: The location identified in this section for administrative purpose only. Actual inspection and acceptance shall be performed at the Government-designated Transportation Office specified in each Task Order (TO), and may vary depending on the order. DoDAAC: FA5209 CountryCode: USA FA5209 374 CONS PK (ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228 APO, AP 96326-9053 UNITED STATES
1001	Inspection and Acceptance Location Both Other Instructions: The location identified in this section for administrative purpose only. Actual inspection and acceptance shall be performed at the Government-designated Transportation Office specified in each TO, and may vary depending on the order. DoDAAC: FA5209 CountryCode: USA FA5209 374 CONS PK (ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228 APO, AP 96326-9053 UNITED STATES
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designated Transportation Office specified in each TO, and may vary depending on the order.

DoDAAC: FA5209
CountryCode: USA

FA5209 374 CONS PK
(ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228
APO, AP 96326-9053
UNITED STATES

Deliveries or Performance

Deliveries or performance shall occur at the location specified by the appointed Ordering Officer in each individual service request. The place of delivery or performance may vary with each service request.

Line Item	Delivery Schedule	Estimated Quantity	Address and POC
0001	Delivery Schedule From date of lead time event to completion of performance 12 Month Ordering Period 1 (Year 1): From the date of award for a period of 12 months	1 Lot	Place of Performance DoDAAC: FA5209 CountryCode: USA FA5209 374 CONS PK (ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228 APO, AP 96326-9053 UNITED STATES
1001	Delivery Schedule From date of lead time event to completion of performance 12 Month Ordering Period 2 (Year 2): For a period of 12 months from the expiration of Ordering Period 1	1 Lot	Place of Performance DoDAAC: FA5209 CountryCode: USA FA5209 374 CONS PK (ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228 APO, AP 96326-9053 UNITED STATES
2001	Delivery Schedule From date of lead time event to completion of performance 12 Month Ordering Period 3 (Year 3): For a period of 12 months from the expiration of Ordering Period 2	1 Lot	Place of Performance DoDAAC: FA5209 CountryCode: USA FA5209 374 CONS PK (ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228 APO, AP 96326-9053 UNITED STATES
3001	Delivery Schedule From date of lead time event to completion of performance 12 Month Ordering Period 4 (Year 4): For a period of 12 months from the expiration of Ordering Period 3	1 Lot	Place of Performance DoDAAC: FA5209 CountryCode: USA FA5209 374 CONS PK (ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228 APO, AP 96326-9053 UNITED STATES
4001	Delivery Schedule From date of lead time event to completion of performance 12 Month Ordering Period 5 (Year 5): For a period of 12 months from the expiration of Ordering Period 4	1 Lot	Place of Performance DoDAAC: FA5209 CountryCode: USA FA5209 374 CONS PK (ADMIN ONLY NO REQTN) UNIT 5228, OPC 78 BOX 5228 APO, AP 96326-9053 UNITED STATES

Contract Administration Data

Addenda to Standard Form (SF) 1449

1. Block 17b of SF 1449, Remittance Address: If the remittance address is different from the mailing address, enter the remittance address below. Failure to provide this information may impact payment. This address will be used when the Government is unable to make the payment by Electronic Funds Transfer and send a check to the Contractor.

2. Block 18b of SF 1449, Submit Invoices in accordance with R-DFARS 252.232-7006 Wide Area Work Flow Payment Instructions.

3. Block 25 of SF 1449, Accounting and Appropriation Data: Accounting and Appropriation Data will be cited on each order.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (R-DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Not Applicable (N/A)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when RFO 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	See each Task Order (TO)
Issue By DoDAAC	See each TO
Admin DoDAAC	See each TO
Inspect By DoDAAC	See each TO
Ship To Code	See each TO
Ship From Code	N/A
Mark For Code	N/A
Service Approver (DoDAAC)	See each TO
Service Acceptor (DoDAAC)	See each TO
Accept at Other DoDAAC	N/A

LPO DoDAAC	See each TO
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or RFO 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of R-DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the Point of Contact (POC) designated on each individual TO.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Special Contract Requirements

AUTHORITY TO PLACE ORDERS

1. Task Order (TO) Issuance. The Contracting Officer (CO) will issue the TO, under which services are to be performed.
2. Role of Ordering Officers. Appointed Ordering Officers (OOs) will issue schedule requests, which include administer and coordinate performance under TOs issued by the CO, strictly within the limits of their delegated authority.

ORDERING PROCEDURES

Services under this contract will be procured through the issuance of individual TOs. The procedure for placing and executing a schedule request is as follows:

1. Requirement for Transportation Acceptance Agreement ("Unsou-Hikiuke-Sho").

Regardless of the TO type, the Contractor shall obtain a Transportation Acceptance Agreement from the selected bus company for each distinct service or trip. This document serves as official confirmation that a bus company has accepted the assigned service and constitutes evidence that the transportation arrangement has been secured. The Contractor must retain this document for each service performed and provide it to the Government upon request, as it forms the basis for service verification and audit.

2. Step 1: Identification of Requirement & TO Type Selection.

The Government, through the CO or an appointed OO, will identify a requirement for charter bus services. Based on the nature of the requirement, the CO will determine the appropriate TO type: Blanket, Undefined, or Defined.

3. Step 2: Service Request Placement Procedures by TO Type.

The procedures for placing and executing the service requests are as follows, corresponding to the selected TO type:

- a. Procedure for Blanket TOs:

In this scenario, a single TO is issued to cover multiple recurring service requirements over a specified period.

- (1) The CO issues a Blanket TO, establishing a performance period and obligating initial funds.
- (2) For each individual service, the OO coordinates the schedule and service details with the Contractor within the scope of the Blanket TO. No separate TO is issued for each service.
- (3) All services shall be performed within the scope, pricing structure, and funding limitations of the Blanket To and the base contract.
- (4) Upon completion of each service, the Contractor shall submit an Order Completion Report to the COR or the CO through the OO. This report shall detail the services rendered and specify the final amount to be charged, which will be used for verification and payment processing.
- (5) After verification, the Contractor may submit an invoice for the completed service through Wide Area Workflow (WAWF), citing the applicable Blanket TO number.

- b. Procedure for Undefined TOs:

This procedure applies when certain elements (e.g., schedule, quantity, or routing) cannot be fully defined at the time of service request issuance.

- (1) The CO issues an Undefined TO and obligates funds based on the estimated requirement.
- (2) The OO coordinates with the Contractor to finalize all outstanding details.
- (3) All services shall be performed in accordance with the finalized details, which must remain within the scope, pricing structure, and funding limitations of the Undefined TO and the base contract.
- (4) Upon completion of all services under the TO, the Contractor submits an Order Completion Report to the COR or the CO through the OO. This report shall detail the services rendered and specify the final amount to be charged, which will be used for verification and payment processing.
- (5) After verification, the Contractor may submit an invoice for the completed services through WAWF.

- c. Procedure for Defined Task Orders:

This procedure applies when all service requirements are fully known in advance.

- (1) The OO/CO determines the exact services requirements.

- (2) The Contractor shall submit a quote for the requested service based on the pre-priced rate specified the Exhibits. The CO will review this quote for fairness and reasonableness before issuing a Defined TO.
- (3) The CO issues a fully funded Defined TO that species all details of the service. Coordination with the OO is required.
- (4) The Contractor performs the service as specified in the Defined TO.
- (5) Upon completion, the Contractor may submit an invoice directly through WAWF. An Order Completion Report is not typically required.

Ombudsman

1. An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, CO, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.
2. Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the CO for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).
3. If resolution cannot be made by the CO, the interested party may contact the ombudsman:

AFICC/KH CEM
25 E Street, Suite C-320
JBPH-H, HI 96853-5427
Phone: (808) 447-6128
mail: afica.kh@us.af.mil

Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/FLDCOM/DRU ombudsman level, may be brought by the interested party for further consideration to the Department of the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.

4. The ombudsman has no authority to render a decision that binds the agency.
5. Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the CO.

CONTRACTOR ACCESS TO THE DEPARTMENT OF THE AIR FORCE INSTALLATIONS

1. The Contractor shall obtain base identification and vehicle passes, if required, for all Contractor personnel who make frequent visits to or perform work on the Department of the Air Force installation(s) cited in the contract. Contractor personnel are required to wear or prominently display installation identification badges or contractor-furnished, contractor identification badges while visiting or performing work on the installation.
2. The Contractor shall submit a written request on company letterhead to the CO listing the following: contract number, location of work site, start and stop dates, and names of employees and subcontractor employees needing access to the base. The letter will also specify the individual(s) authorized to sign for a request for base identification credentials or vehicle passes. The CO will endorse the request and forward it to the issuing base pass and registration office or Security Forces for processing. When reporting to the registration office, the authorized contractor individual(s) should provide a valid driver's license, current vehicle registration, valid vehicle insurance certificate, and any other documentation required by the installation's Pass and ID office to obtain a vehicle pass.
3. During performance of the contract, the Contractor shall be responsible for obtaining required identification for newly assigned personnel and for prompt return of credentials and vehicle passes for any employee who no longer requires access to the work site.
4. When work under this contract requires unescorted entry to controlled or restricted areas, the Contractor shall comply with all applicable installation security policies and procedures citing the appropriate paragraphs as applicable.
5. Upon completion or termination of the contract or expiration of the identification passes, the prime contractor shall ensure that all base identification passes issued to employees and subcontractor employees are returned to the issuing office.

6. The Contractor shall provide an after-hours contact number or after-hours email in the Emergency Mass Notification System (EMNS) for each of their personnel, whose normal place of duty is on a DoD installation or within a DoD facility. The Contractor shall comply with any additional requirements in DAFMAN 10-206 for emergency operational reporting. Foreign Nationals may participate and may remove themselves from the Emergency Mass Notification System at any time. To update information, personnel can access the globe icon on their system desktop screens and choose the "Access Self-Service" option.
7. Failure to comply with these requirements may result in withholding of final payment.

Contract Clauses

Addendum to RFO 52.212-4 Contract Terms and Conditions - Commercial Products and Commercial Services

(k) Taxes. The text is deleted and replaced as follows:

(1) Unless otherwise provided in this contract, the contract price includes all applicable taxes and duties, except taxes and duties that the Government of the United States and the Government of Japan have agreed shall not be applicable to expenditures in Japan by or on behalf of the United States.

(2) The Status of Forces Agreement between the Japan and the United States and implementing the Japanese laws authorizes the United States exemption from certain Japanese taxes for materials, supplies, equipment and services procured for official purpose in Japan by the United States Armed Forces or by authorized agencies of the United States Armed Forces. Those taxes include (1) Consumption tax, (2) Gasoline tax and local road tax on gasoline, (3) Diesel oil tax, and (4) Liquefied petroleum gas tax.

(3) The Contractor will submit requests for gasoline or diesel oil tax exemption certificate to the Contracting Officer. This request will show the actual amount of gasoline or diesel oil used exclusively for the performance of this contract, with documentary evidence and detailed item breakdown to support the accurate consumption of gasoline or diesel oil, or other necessary information and data as may be required. The Contracting Officer will issue to the Contractor a tax exemption certificate for the actual amount of gasoline or diesel oil used exclusively for the performance of this contract.

(v) Conciliation. Inserted as new paragraph: Except as otherwise provided in this contract, any disagreement arising under this contract which is not resolved by the parties to this contract may be submitted to the United States - Japan Joint Committee for conciliation in accordance with Paragraph 10, Article XVIII of the Status of Forces Agreement under Article VI of the Treaty of Mutual Cooperation and Security between Japan and the United States of America. Requests by the Contractor shall be made in accordance with the following procedures:

(1) In the event the Contractor desires conciliation after the decision of the Contracting Officer has been served upon him, he will first file his appeal from such findings of fact with the appropriate authority in accordance with the clause of this contract entitled, "Disputes" and within the time limits described therein before filing a request for conciliation with the Joint Committee and then request the appellate authority under the "Disputes" clause to suspend its action on his appeal until such time as the Joint Committee has had an opportunity for effecting conciliation.

(2) The request for conciliation will be submitted by the Contractor through the nearest Defense Facilities Administration Bureau, to the Contract Conciliation Panel of the Joint Committee. Upon the filing of the request with the Joint Committee, the Contractor will immediately notify the Contracting Officer in writing that the request for conciliation has been filed.

(3) In the event the disagreement submitted to the Joint Committee under subparagraph (2) above has been resolved through conciliation, it will be the responsibility of the Contractor to notify the appellate authority designated in the clause of this contract entitled, "Disputes", of the settlement of the dispute and to withdraw his appeal.

(4) In the event the Contractor has submitted a request for conciliation to the Joint Committee under subparagraph (2) above desires, notwithstanding pendency of his request for conciliation, that action by the appropriate authority under the clause of this contract entitled, "Disputes", be resumed on his appeal, it is his responsibility to so request the said authority in writing. The Joint Committee shall be immediately informed by the Contractor of his action taken hereunder.

(5) No request for conciliation can be submitted to the Joint Committee in the case of a dispute upon which the final decision of the appropriate authority under the clause of this contract entitled, "Disputes", has been rendered. Pending the hearing of the conciliation panel, the Contractor shall proceed diligently with the performance of the contract in accordance with the Contracting Officer's decision. The provisions of this clause shall not prejudice any right which the parties to the contract may have to file in a civil suit.

(End of Clause)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.225-14	Inconsistency between English Version and Translation of Contract.	Feb 2000		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		

52.228-3	Workers' Compensation Insurance (Defense Base Act).	Jul 2014
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021
52.232-37	Multiple Payment Arrangements.	May 1999
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.229-7014	Full Exemption from Two-Percent Excise Tax on Certain Foreign Procurements.	Oct 2022		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.216-18 **Ordering.** **(Aug 2020)**

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued during the ordering period of the contract, commencing on the effective date of contract award as specified in the award document.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 **Order Limitations. (Tailored)** **(Oct 1995)**

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than JPY 10,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of the maximum quantities listed below;

Hokkaido Region: [20] buses

Tohoku Region: [10] buses

Kanto Region: [20] buses

Hokurikushinetsu Region: [10] buses

Chubu Region: [10] buses

Kinki Region: [15] buses

Chugoku Region: [20] buses

Shikoku Region: [10] buses

Kyushu Region: [20] buses

Okinawa Region: [15] buses

(2) Any order for a combination of items in excess of 150 buses; or

(3) A series of orders from the same ordering office within 3 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the RFO), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 5 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Deviation 2026-O0038)

(Feb 2026)

Indefinite Quantity (Feb 2026) (Deviation 2026-O0038)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after the Period of Performance end date of the latest open Task Order.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year.

(Apr 1984)

Availability of Funds for the Next Fiscal Year (Apr 1984)

Funds are not presently available for performance under this contract beyond 30 September 2026. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond 30 September 2026, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.232-34 Payment by Electronic Funds Transfer-Other than System for Award Management.

(Jul 2013)

Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013)

(a) Method of payment.

(1) All payments by the Government under this contract shall be made by electronic funds transfer (EFT) except as provided in paragraph (a)(2) of this clause. As used in this clause, the term "EFT" refers to the funds transfer and may also include the payment information transfer.

(2) In the event the Government is unable to release one or more payments by EFT, the Contractor agrees to either-

- (i) Accept payment by check or some other mutually agreeable method of payment; or
- (ii) Request the Government to extend payment due dates until such time as the Government makes payment by EFT (but see paragraph (d) of this clause).

(b) Mandatory submission of Contractor's EFT information.

(1) The Contractor is required to provide the Government with the information required to make payment by EFT (see paragraph (j) of this clause). The Contractor shall provide this information directly to the office designated in this contract to receive that information (hereafter: "designated office") by the date when the contractor submit first invoice, using EFT Form established by DFAS. If not otherwise specified in this contract, the payment office is the designated office for receipt of the Contractor's EFT information. If more than one designated office is named for the contract, the Contractor shall provide a separate notice to each office. In the event that the EFT information changes, the Contractor shall be responsible for providing the updated information to the designated office(s).

(2) If the Contractor provides EFT information applicable to multiple contracts, the Contractor shall specifically state the applicability of this EFT information in terms acceptable to the designated office. However, EFT information supplied to a designated office shall be applicable only to contracts that identify that designated office as the office to receive EFT information for that contract.

(c) Mechanisms for EFT payment. The Government may make payment by EFT through either the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association, or the Fedwire Transfer System. The rules governing Federal payments through the ACH are contained in 31 CFR part 210.

(d) Suspension of payment.

(1) The Government is not required to make any payment under this contract until after receipt, by the designated office, of the correct EFT payment information from the Contractor. Until receipt of the correct EFT information, any invoice or contract financing request shall be deemed not to be a proper invoice for the purpose of prompt payment under this contract. The prompt payment terms of the contract regarding notice of an improper invoice and delays in accrual of interest penalties apply.

(2) If the EFT information changes after submission of correct EFT information, the Government shall begin using the changed EFT information no later than 30 days after its receipt by the designated office to the extent payment is made by EFT. However, the Contractor may request that no further payments be made until the updated EFT information is implemented by the payment office. If such suspension would result in a late payment under the prompt payment terms of this contract, the Contractor's request for suspension shall extend the due date for payment by the number of days of the suspension.

(e) Liability for uncompleted or erroneous transfers.

(1) If an uncompleted or erroneous transfer occurs because the Government used the Contractor's EFT information incorrectly, the Government remains responsible for-

- (i) Making a correct payment;
- (ii) Paying any prompt payment penalty due; and
- (iii) Recovering any erroneously directed funds.

(2) If an uncompleted or erroneous transfer occurs because the Contractor's EFT information was incorrect, or was revised within 30 days of Government release of the EFT payment transaction instruction to the Federal Reserve System, and-

- (i) If the funds are no longer under the control of the payment office, the Government is deemed to have made payment and the Contractor is responsible for recovery of any erroneously directed funds; or

(ii) If the funds remain under the control of the payment office, the Government shall not make payment and the provisions of paragraph (d) shall apply.

(f) *EFT and prompt payment.* A payment shall be deemed to have been made in a timely manner in accordance with the prompt payment terms of this contract if, in the EFT payment transaction instruction released to the Federal Reserve System, the date specified for settlement of the payment is on or before the prompt payment due date, provided the specified payment date is a valid date under the rules of the Federal Reserve System.

(g) *EFT and assignment of claims.* If the Contractor assigns the proceeds of this contract as provided for in the assignment of claims terms of this contract, the Contractor shall require as a condition of any such assignment, that the assignee shall provide the EFT information required by paragraph (j) of this clause to the designated office, and shall be paid by EFT in accordance with the terms of this clause. In all respects, the requirements of this clause shall apply to the assignee as if it were the Contractor. EFT information that shows the ultimate recipient of the transfer to be other than the Contractor, in the absence of a proper assignment of claims acceptable to the Government, is incorrect EFT information within the meaning of paragraph (d) of this clause.

(h) *Liability for change of EFT information by financial agent.* The Government is not liable for errors resulting from changes to EFT information provided by the Contractor's financial agent.

(i) *Payment information.* The payment or disbursing office shall forward to the Contractor available payment information that is suitable for transmission as of the date of release of the EFT instruction to the Federal Reserve System. The Government may request the Contractor to designate a desired format and method(s) for delivery of payment information from a list of formats and methods the payment office is capable of executing. However, the Government does not guarantee that any particular format or method of delivery is available at any particular payment office and retains the latitude to use the format and delivery method most convenient to the Government. If the Government makes payment by check in accordance with paragraph (a) of this clause, the Government shall mail the payment information to the remittance address in the contract.

(j) *EFT information.* The Contractor shall provide the following information to the designated office. The Contractor may supply this data for this or multiple contracts (see paragraph (b) of this clause). The Contractor shall designate a single financial agent per contract capable of receiving and processing the EFT information using the EFT methods described in paragraph (c) of this clause.

(1) The contract number (or other procurement identification number).

(2) The Contractor's name and remittance address, as stated in the contract(s).

(3) The signature (manual or electronic, as appropriate), title, and telephone number of the Contractor official authorized to provide this information.

(4) The name, address, and 9-digit Routing Transit Number of the Contractor's financial agent.

(5) The Contractor's account number and the type of account (checking, saving, or lockbox).

(6) If applicable, the Fedwire Transfer System telegraphic abbreviation of the Contractor's financial agent.

(7) If applicable, the Contractor shall also provide the name, address, telegraphic abbreviation, and 9-digit Routing Transit Number of the correspondent financial institution receiving the wire transfer payment if the Contractor's financial agent is not directly on-line to the Fedwire Transfer System; and, therefore, not the receiver of the wire transfer payment.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.225-7963 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (DEVIATION 2026-O0041) (Feb 2026) **Deviation 2026-O0041 (Feb 2026)**

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES(DEVIAION 2026-O0041) (FEB 2026)

(a) *Definition.* "United States," as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall--

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is--

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from 374aw.atfp@us.af.mil or DSN 225-6340.

(End of clause)

List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item
01	Atch1 PWS APR2026	Performance Work Statement		08 Apr 2026	
02	Atch2 Exhibits APR2026	Pricing Exhibits		08 Apr 2026	

Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.209-7 **Information Regarding Responsibility Matters. (Deviation 2026-O0038)** **(Feb 2026)**

Information Regarding Responsibility Matters (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

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252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation.

(Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.

(May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Instructions, Conditions, & Notices to Offerors or Quoters

Addenda to RFO 52.212-1 Instructions to Offerors -Commercial Products and Commercial Services.

(a) Paragraph 52.212-1(b), "Period for Acceptance of Offers," is tailored as follows: "The quoter agrees to hold the prices in its quote firm for 120 calendar days from the date specified for receipt of quotes."

(b) The following is inserted as new paragraph (f) of the provision:

"(f) Quotation Preparation Instructions.

1. Quotation Preparation Instruction: The Government intends to award a single contract resulting from this solicitation to the responsible quoter whose quote conforming to the solicitation will be most advantageous to the Government. To assure timely and equitable evaluation of quotations, quoters must follow the instructions contained herein. Quoters are required to meet all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation factors or subfactors. Quoters must clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale. The response shall consist of three (3) separate parts: Part I - Summary and Miscellaneous Data, Part II - Technical Offer, and Part III - Price Quotation.

2. Specific Instructions:

A. PART I - SUMMARY AND MISCELLANEOUS DATA - Submit one (1) electronic copy.

(1) Standard Form (SF) 1449. Complete blocks 12, 17a, 30a, 30b, and 30c. In doing so, the quoter accedes to the contract terms and conditions as written in the solicitation.

(2) Complete the necessary fill-ins and certifications in provisions and in the on-line Representations and Certifications at www.sam.gov.

(3) Submit an acknowledgment of the all solicitation amendments, if issued.

(4) If none proposed, submit an Affirmation of no Exceptions, Deviations, or Waivers.

B. PART II - TECHNICAL OFFER - Submit one (1) electronic copy. Limited to no more than 40 pages.

(1) Factor 1: VALID AUTHORIZATION: To be eligible for award, the quoter itself must possess and provide proof that it possesses a valid "Type 1 Travel Agency" registration (Dai-Ichi Shu Ryokougyosha Touroku-Hyo in Japanese) issued by the Japan Tourism Agency, Ministry of Land, Infrastructure, Transport and Tourism (MLIT), GOJ. The registration must be held directly in the name of the quoter and not by a parent company, subsidiary, or partner. Quotations submitted without proof of this registration will be considered ineligible for award.

(2) Factor 2: ESTABLISHED NETWORKS: To demonstrate the capability to provide full coverage for the area of performance specified in the PWS and the Exhibit, the quoter must submit evidence of established partnerships with bus companies nationwide in Japan. The submission shall include a list of partnership bus companies, including company name and domiciled municipality (city, town, or village), organized by all 47 prefectures.

If the page limit specified in Part II - Technical Offer is exceeded, the excessive pages will not be evaluated.

C. PART III - PRICE QUOTATION - Submit one (1) electronic copy. No Page Limit.

(1) This Part shall contain a completed Exhibit. Quoters are not required to complete blocks 19 - 24 of the SF 1449.

(2) Insert proposed unit price(s) in the Exhibit: It is imperative that mathematical calculations are correct; particular care should be taken to ensure the amounts match when using a spreadsheet program, such as Microsoft EXCEL and rounding of figures.

3. General Information:

A. Submission of Quotations: Quoter shall submit electronic copies of quotation via email. By submitting an electronic copy, quoters assume all risk of quotations not getting through security measures and firewalls. The quoters shall follow the instructions listed below:

(1) Only files created using Microsoft WORD, Microsoft EXCEL, and/or Adobe.pdf files will be accepted. No zip files will be accepted. The Price Part shall be submitted in EXCEL spreadsheet format. Indicate on each file the Part number and title.

(2) Include the description "Quotation No. FA520926Q0021" in your subject line of the email when a quotation is submitted.

(3) Email the file(s) by the solicitation closing date and time to the following email addresses: go.ishikawa.jp@us.af.mil and takahiro.tsukada.jp@us.af.mil and call the POCs to confirm the receipt of the quotation at 042-552-3010 or 011-81-42-552-3010 from the United States.

(4) If the total size of email is expected to exceed 20MB, the quoter may use DoD SAFE (Department of Defense Secure Access File Exchange) <https://safe.apps.mil/> to upload the files. In order for the quoter to upload the files in DoD SAFE, the quoter must request to the POCs that the Government send an email with a link or provide a request code for access. It is a quoter's responsibility to ensure the receipts by contacting the POCs.

(5) The quoter may also use DoD SAFE as an alternate method when the quoter is incapable of submission of quotation via email.

(6) In a circumstance that the quoter experiences technical issues on both email and the access to DoD SAFE, the quoter may submit electronic copies of quotation via fax at 042-551-0973 from inside Japan / +81(country code)-42-551-0973 from outside Japan after notifying the POCs. It is a quoter's responsibility to (1) allow sufficient time to complete fax transmission by the solicitation closing date and time and (2) ensure the receipts by contacting the POCs.

B. Format for quotation Parts I and II shall be as follows:

(1) Each written Part of the quotation shall be separately bound and labeled. Cover pages, Table of Contents, and Tabs will not be counted against the page limits. However, pages depicting tables, charts, graphs, and figures will count toward the page limit. The number of copies of each part is specified in paragraph 2, Specific Instructions, above.

(2) The quotations shall be formatted electronically to fit 8 1/2" x 11" or A4 size.

(3) A page is defined as one face of a sheet of paper containing information.

(4) All printing shall be single-spaced. Spacing characteristics are applicable to charts and graphs.

(5) Written entries shall not be less than 10 font size. Size of print is applicable to charts and graphs.

(6) Page margins shall be a minimum of 1 inch top, bottom, and each side.

(7) Each Part shall be complete in itself and shall not reference information contained in other Parts.

(8) Price data of any kind shall be presented only in the Price Quotation Part.

(9) Elaborate formats, bindings, and color presentations are not desired or required.

C. Quotation Submission Summary:

The following summarizes the quotation submission:

Part I:

Title: Summary and Miscellaneous Data

Electronic Copy: 1

Paper Copy: 0

Page Limit: N/A

Due Date: See Block 8 of SF1449

Part II:

Title: Technical Offer

Electronic Copy: 1

Paper Copy: 0

Page Limit: No more than 40 pages

Due Date: See Block 8 of SF1449

Part III:

Title: Price Quotation

Electronic Copy: 1

Paper Copy: 0

Page Limit: No Page Limit

Due Date: See Block 8 of SF1449

D. FEDERAL HOLIDAYS: The following Federal Legal Holidays are observed by this base:

New Year's Day / 1 January

Birthday of Martin Luther King / Third Monday in January

Washington's Birthday / Third Monday in February

Memorial Day / Last Monday in May

Juneteenth Day / 19 June

Independence Day / 4 July

Labor Day / First Monday in September

Columbus Day / Second Monday in October
Veterans Day / 11 November
Thanksgiving Day / Fourth Thursday in November
Christmas Day / 25 December

Note: No Japanese holidays will be observed."

(End of Addenda)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan. (Deviation 2026-O0038)	Feb 2026		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

DFARS Clauses Incorporated by Full Text

252.215-7992 Only One Offer. (DEVIATION 2026-O0048) (Mar 2026) Deviation 2026-O0048 (Mar 2026)

ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-1 with the notification].

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation)

(Feb 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible quoter whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate quotes:

(1) Technical

(2) Price

(b) Price Evaluation. The contract resulting from this solicitation will be an IDIQ contract with a total term of five (5) years. The term is comprised of five (5) one-year ordering periods. The ordering periods will be automatically extended for a successive one-year period upon expiration of the then-current period, until the total five-year term of the contract is reached.

The Government will evaluate price based on the Total Evaluated Price (TEP). The TEP will consist of the total price for all five (5) ordering periods. The TEP will be calculated by applying the proposed unit prices to the estimated quantities specified in the Exhibits and summing the totals across all Contract Line Item Numbers (CLINs) for all ordering periods. The Government may also review individual unit prices to assess price reasonableness. The Government reserves the right to perform a price realism analysis to assess whether proposed prices are so low as to indicate a lack of understanding of the requirements or present performance risk. If the Government determines that a quote reflects such risk, it may consider the quote unacceptable.

The TEP will be computed by summing the quoter's total proposed prices for all line items (CLINs) across all five (5) ordering periods.

(c) Notice to Award. A written notice of award or acceptance of a quote, mailed or otherwise furnished to the successful quoter within the time for acceptance specified in the quote, will result in a binding contract without further action by either party. Before the quoter's specified expiration time, the Government may accept a quote (or part of a quote), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Addendum to RFO 52.212-2, Evaluation - Commercial Products and Commercial Services.

The following is inserted as new paragraph (d) of the provision:

"(d) BASIS FOR CONTRACT AWARD: This is a competitive best value acquisition utilizing Lowest Price Technically Acceptable (LPTA)

Source Selection conducted in accordance with RFO Parts 12. By submission of its quote in accordance with the instructions provided in clause RFO 52.212-1, Instructions to Offerors -Commercial Products and Commercial Services, the quoter accedes to the terms of this model contract. Failure to meet a requirement may result in a quoter being determined unacceptable. Award will be made to the lowest Total Estimated Price quote that meets the acceptability standards for non-price factors. The evaluation process will include the following: (1) Technical Acceptability Evaluation. The Government will evaluate the technical offer on a pass/fail basis against the following two factors. The quoter must receive an "Acceptable" rating for both factors to be considered technically acceptable. Failure to meet the standard for any factor will result in an "Unacceptable" rating and the quote will not be further considered for award.

1. **Factor 1: VALID AUTHORIZATION:** The quoter must possess a "Type 1 Travel Agency" registration (Dai-Ichi Shu Ryokougyosha Touroku-Hyo in Japanese) issued by the Japan Tourism Agency, the MLIT, GOJ. This registration must be held directly in the name of the quoter.

A. Standard: The quoter provides proof of a valid "Type 1 Travel Agency " registration (Dai-Ichi Shu Ryokougyosha Touroku-Hyo in Japanese) issued by the Japan Tourism Agency, the MLIT, GOJ, and this registration is held directly in the name of the quoter.

B. Acceptable/Unacceptable:

(1) Acceptable: The quoter provides a valid Type 1 registration held directly in the name of the quoting entity.

(2) Unacceptable: The quoter fails to provide the required registration, the registration is not Type 1, or the registration is not held directly in the name of the quoting entity.

2. **Factor 2: ESTABLISHED NETWORKS:** The quoter must demonstrate an established nationwide network capable of providing full coverage of the area of performance as required in the PWS.

A. Standard: The Government anticipates that a network of approximately 500 or more bus companies may be necessary to meet the performance requirements. This figure is based on market research and represents an estimated benchmark, not a strict minimum requirement.

B. Acceptable/Unacceptable:

(1) Acceptable: The quoter demonstrates an adequate nationwide network and submits the complete, correctly formatted list.

(2) Unacceptable: The quoter fails to demonstrate the required network size or fails to submit the list as instructed."

(End of provision)